

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Edward Vasquez,: Index Number:
: Date Purchased:
: Date Filed:

Plaintiffs

: SUMMONS

-against-

:

City of New York, New York City Police Department,
Police Officer John Avellino, Shield 26918 of the 48
Precinct and New York City Police Officers John Doe,

:

:

: Plaintiff's residence is:
: 1942 McGraw Avenue
: Bronx, NY 10462

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: January 14, 2019
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer John Avellino, Shield 26918 of the 48 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Edward Vasquez,

Plaintiffs

-against-

City of New York, New York City Police Department,
Police Officer John Avellino, Shield 26918 of the 48
Precinct and New York City Police Officers John Doe

Defendants
-----X

VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Edward Vasquez (hereinafter referred to as "VASQUEZ") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Police Officer John Avellino, Shield 26918 of the 48 Precinct was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers who arrested VASQUEZ, (hereinafter referred to as "DOES") were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
6. On or about October 29, 2017 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
7. That on or about October 3, 2018 Plaintiff sat for a 50h hearing required by Municipal Law 50-H. At said hearing Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
8. That on or about July 7, 2017 approximately 4:00PM in the vicinity of Bronx Park South and Mohegan Avenue, Bronx, NY Plaintiff was on his way from visiting with his girlfriend when he was stopped by AVELLINO and DOES for no lawful reason.
9. That at the time Plaintiff was stopped he had not violated any New York State Vehicle and Traffic Rules of Regulations.
10. That AVELLINO and DOES ordered Plaintiff to exit the car, to which Plaintiff complied, and that AVELLINO and DOES unlawfully searched Plaintiff's car.
11. That at no time did Plaintiff possess an illegal or unlawful knife.
12. That Plaintiff was handcuffed and arrested.
13. That after Plaintiff was arrested, he was transported to the 48 precinct.
14. That while Plaintiff was inside of said precinct, Plaintiff was held in a holding cell occupied with other males for several hours.

15. That after several hours Plaintiff was released and given a Desk Appearance Ticket to come to Bronx County Criminal Court located at 215 East 161 Street, Bronx, NY on September 7, 2017 for his arraignment.

16. That at the time of his arraignment, Plaintiff was released and ordered to return to court on October 25, 2017.

17. That on October 25, 2017 Plaintiff returned to court and that the case was dismissed upon application of the Office of the Bronx District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

18. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 17, as if more fully stated herein at length.

19. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

20. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

21. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

22. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

23. That as a result of the Defendant's actions, Plaintiff missed several days from work.

24. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

25. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 24, as if more fully stated herein at length.

26. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

27. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.

29. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

32. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested by claiming that they tested the knife recovered when in fact they had not. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. At all times pertinent hereto, AVELLINO and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

35. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that AVELLINO and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. The City of New York and New York City Police Department's failure to provide adequate training and supervision to AVELLINO and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

38. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37 as if more fully stated herein at length.

39. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

40. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

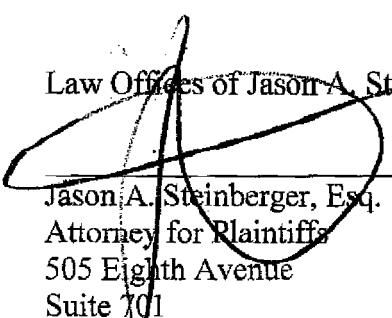
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

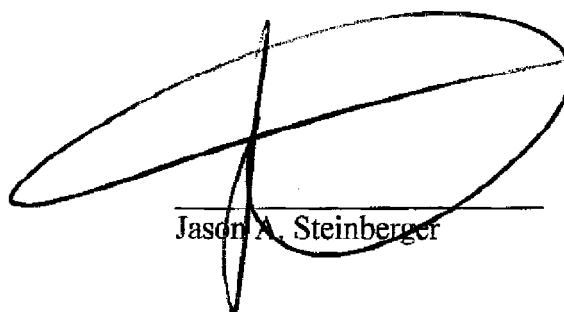


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: January 14, 2019



Jason A. Steinberger

Index Number:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

EDWARD VASQUEZ.

Plaintiffs

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER JOHN AVELLINO, SHIELD 26918 OF THE 48 PRECINCT AND NEW
YORK CITY POLICE OFFICERS JOHN DOE,**

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC
505 Eighth Avenue
Suite 701
New York, NY 10018

To:
Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on

**NOTICE
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
NOTICE OF once of the Judges of the within named Court,
SETTLEMENT at

on

200 , at m.

Dated:

JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018

To:
Attorney(s) for

CONSENT AND AUTHORIZATION FOR RELEASE OF RECORDS SEALED
PURSUANT TO CRIMINAL PROCEDURE LAW SECTION 160.50Whereas, I Edward Vasquez, residing at1942 McGraw Avenue, Bronx NY 10462 have caused a Verified Complaint to be

served upon The City of New York, demanding money damages for false
arrest, false imprisonment and/or assault and battery, I hereby waive my
statutory right for purposes of this claim to keep sealed the records of my
arrest on or about July 7, 2017 and the criminal proceedings
related thereto [arrest # /indictment # /docket
2017BK033302]; and

Whereas certain information relating to my arrest and the criminal
proceedings related thereto are necessary for The City of New York to have
access thereto in order to prepare its defense.

I hereby authorize any and all governmental agencies, bodies and
employees having custody of such records (including the District Attorney's
Office) to release such records to the Office of the Corporation Counsel of
The City of New York or its authorized agent or employee.

Edward Vasquez

STATE OF NEW YORK: COUNTY OF

On the 18 day of October, 2018, before me personally came
and appeared Edward Vasquez, to me known to be the
individual(s) described in and who executed the foregoing instrument and
who duly acknowledged to me that (s)he executed the same.

[Signature]

EDWARD VASQUEZ

1942 MCGRAW AVE

APT 3

BX NY 10462

(407) 485-2907
(631) 336-3677

6/7/17

4:00 PM

BX PARK SOUTH /
MCGRAW AVE

48

6/7/17

10:00 PM

DA

9/7/17

↓

Dismissed
10/25/17



THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
CLAIMS AND ADJUDICATIONS
1 CENTRE STREET ROOM 1200
NEW YORK, N.Y. 10007-2341

WWW.COMPTROLLER.NYC.GOV

015 - 151

Scott M. Stringer
COMPTROLLER

Date: 10/31/2017
Claim No: 2017PI030282
RE: Acknowledgment of Claim
Your Claim/Policy#:

EDWARD VASQUEZ c/o JASON A STEINBERGER LCC
888 GRAND CONCOURSE SUITE 1H
BRONX, NY 10451

Dear Claimant:

We acknowledge receipt of your claim, which has been assigned the claim number shown above. Please refer to this claim number in any correspondence or inquiry you may have with our office.

We will do our best to investigate and, if possible, settle your claim. However, if we are unable to resolve your claim, **any lawsuit against the City must be started within one year and ninety days from the date of the occurrence.**

If you have any questions regarding your claim, you may contact us at 212-669-2478 for claims involving personal injury.

Sincerely,

Bureau of Law & Adjustment

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF BRONX

CERTIFICATE OF DISPOSITION
NUMBER: 200012

THE PEOPLE OF THE STATE OF NEW YORK
VS

VASQUEZ, EDWARD
Defendant

02/22/1992
Date of Birth

2090 MOHEGAN AVENUE
Address

13462611K
NYSID Number

BRONX NY
City State Zip

07/07/2017
Date of Arrest/Issue

Docket Number: 2017BX033302

Summons No:

PL 265.01 01 AM,
Arraignment Charges

Case Disposition Information:

Date Court Action
10/25/2017 DISMISSED AND SEALED

Judge
COLLINS, T

Part
AP5

DISMISSED AND SEALED

SEALED

NO FEE CERTIFICATION

pursuant to Section 160.50 of the CPL

☐ GOVERNMENT AGENCY ☐ COUNSEL ASSIGNED

☐ NO RECORD OF ATTORNEY READILY AVAILABLE. DEFENDANT STATES COUNSEL WAS ASSIGNED

SOURCE ☐ ACCUSATORY INSTRUMENT ☐ DOCKET BOOK/CRIMS ☐ CRC3030 [CRS963]

I HEREBY CERTIFY THAT THIS IS A TRUE EXCERPT OF THE RECORD ON FILE IN
THIS COURT.

DAMANTE, W
COURT OFFICIAL SIGNATURE AND SEAL

10/10/2018
DATE

FEE: NONE

(CAUTION: THIS DOCUMENT IS NOT OFFICIAL UNLESS EMBOSSED WITH THE COURT
SEAL OVER THE SIGNATURE OF THE COURT OFFICIAL.)